

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

8. CORY THOMAS-MANZO V. PABLO MANZO

PFL20100378

On June 2, 2026, Respondent filed a Request for Order (RFO) seeking enforcement of the judgment and sanctions. The RFO and a blank FL-320 were personally served on Petitioner on July 27th in accordance with Family Code § 215, however the required Notice of Tentative Ruling was not served.

Petitioner filed a Responsive Declaration to Request for Order on August 10, 2026. Respondent was served by mail on August 10, 2026. She filed an amended Responsive Declaration to Request for Order on August 25th, however, there is no Proof of Service for this document and it is late filed therefore, the amended Responsive Declaration has not been read or considered by the court.

Respondent has not filed a reply.

Respondent is requesting an order for Moon, Schwartz and Madden to prepare a QDRO and an MDRO pursuant to the terms of the March 10, 2011 Judgment. Once completed, he asks that Petitioner be ordered to sign the QDRO and MDRO within 10 days or else the clerk of the court be appointed as elisor to sign on her behalf. Respondent requests sanctions in the amount of \$3,000 pursuant to Family Code § 271.

Petitioner opposes the requests and states that the division of the retirement accounts is currently moving forward. She asks the court to reserve on any disputed issues concerning interpretation of the March 10, 2011 Judgment, valuation methodology, calculations, offsets, retirement account identification, or implementation should a genuine dispute later arise.

After reviewing the foregoing, it appears the parties are in the process of completing the QDRO and the MDRO. As such, the court is continuing this matter to Thursday, November 5th at 8:30 am in Department 5 as the issue may be moot by that time. The court is reserving jurisdiction over the issue of Section 271 sanctions depending on Petitioner's continued compliance in the preparation and completion of the QDRO and the MDRO. Supplemental declarations are due no later than 10 days prior to the review hearing to update the court on the status of the division of the retirement accounts.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #8: THE COURT IS CONTINUING THIS MATTER TO THURSDAY, NOVEMBER 5TH AT 8:30 AM IN DEPARTMENT 5 AS THE ISSUE OF PREPARING THE QDRO AND THE MDRO MAY BE MOOT BY THAT TIME. THE COURT IS RESERVING JURISDICTION OVER THE ISSUE OF SECTION 271 SANCTIONS DEPENDING ON PETITIONER'S CONTINUED COMPLIANCE IN THE PREPARATION AND COMPLETION OF THE QDRO AND THE MDRO. SUPPLEMENTAL DECLARATIONS ARE DUE NO LATER THAN 10 DAYS PRIOR TO THE REVIEW HEARING TO UPDATE THE COURT ON THE STATUS OF THE DIVISION OF THE RETIREMENT ACCOUNTS.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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9. LANCE P. TREANOR V. LISA R. TREANOR

23FL0408

On May 28, 2026, Respondent filed a Request for Order (RFO) seeking property control orders and an order waiving Petitioner's Preliminary Declaration of Disclosure (PDD). All required documents were served by mail on June 2, 2026.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. He had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting the court enter judgment on all issues or, alternatively, set a date for an evidentiary hearing so the divorce may be finalized. It is unclear if she is asking for a waiver of the PDD or the Final Declaration of Disclosure (FDD) as the RFO makes conflicting requests on this issue. She further requests an award naming the property located at 6532 Highgrade Ct. in Placerville Respondent's sole and separate property without offset. Alternatively, she asks that the court assign the property and all debts, liabilities, liens, or encumbrances thereon to Petitioner as his sole and separate property. And an order that Petitioner indemnify Respondent and hold her harmless for any financial liability, costs, debt, liens, or encumbrances related to the property.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #9: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.